

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/04/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTZWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC19-02313
CASE NAME: TAIT VS. COMMONWEALTH LAND TITLE INS. CO.
JURY TRIAL 7 DAYS
FILED BY:
TENTATIVE RULING:

Parties to appear for court trial.

2. 10:00 AM CASE NUMBER: C24-01419
CASE NAME: MICHAEL HAUS VS. ROBERT RICE
JURY TRIAL
FILED BY:
TENTATIVE RULING:

This matter is set for jury trial on May 3, 2027 pursuant to the Court's Order entered March 20, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C24-00425
CASE NAME: M. L. S. BUILDER INC. VS. SEANDAN NG
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDING NOTICE**
FILED BY: M. L. S. BUILDER INC.
TENTATIVE RULING:

Matter continued to June 22, 2026 pursuant to stipulation of the parties to continue hearing and Order entered April 21, 2026.

4. 9:00 AM CASE NUMBER: C24-02592
CASE NAME: ROWENA DAVIS VS. THE STONEBROOK CONVALESCENT CENTER, INC
***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE**
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AS INTERESTED PERSON
FILED BY: DAVIS, ROWENA
TENTATIVE RULING:

Plaintiff Namonda West ("Ms. West") filed a motion "for an order granting her authority to maintain the survival causes of action on behalf of Rowena Davis, deceased..." (the "Motion"). The Motion was set for hearing on May 4, 2026. The motion is unopposed.

Analysis

After the filing of the Motion, an ex parte application was brought seeking the same relief. That relief was granted by the Court and an Order entered December 29, 2025. For some reason, this Motion was not withdrawn.

Disposition

The Court finds and rules as follows:

1. The Motion is DENIED as MOOT.
2. The Court shall enter the order after hearing.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel